NSRA Title XXXV · Title XXXIX · Payment Integrity

# Stop Paying Out Money We Shouldn't, and Spend What Congress Passed

The Government Accountability Office estimated federal improper payments at about **$186 billion in fiscal year 2025**. The NSRA treats that as a fiscal emergency, not a rounding error: every large program must measure its errors, a permanent analytics center stops bad payments before they go out, and the old computer systems that cause many of them get replaced on a deadline.

## What it does

| Provision | Draft text |
|---|---|
| **Measure every big program** | Every program paying out more than $100 million a year must publish an annual improper-payment estimate (Sec. 3509(a)) |
| **Stop it before it goes out** | A permanent payment-integrity analytics center open to every agency and Inspector General (Sec. 3509(b)); Treasury's Do Not Pay system expanded to real-time verification, including full death records (Sec. 3904) |
| **Fix the leaky systems** | Decades-old benefit, tax, and payment systems retired on a seven-year schedule, paid first from the savings (Secs. 3902, 3905) |
| **Spend what Congress passed** | No "pocket rescissions" in the last 45 days of a fiscal year; withheld funds stay available; expedited GAO lawsuits; States and localities can sue to release funds owed to them (Sec. 3507) |
| **Public apportionments** | OMB must post every apportionment, with footnotes, within two business days (Sec. 3507(f)) |
| **Independent watchdogs** | An Inspector General removed without the required notice stays in office with full pay until the notice is given; no cutting off an IG's records or budget to stop an audit (Sec. 3508) |

## Why both parties should want it

Fiscal conservatives get the largest documented pool of avoidable federal spending. Good-government advocates get transparency and independent watchdogs. Neither side has to agree on the size of government to agree that money should go to the right person, in the right amount, for the purpose Congress set. The impoundment rules apply to every President equally; a sponsor can set them to take effect at the start of the next term so no current officeholder is targeted.

*Operative text: Title XXXV (Secs. 3507–3510) and Title XXXIX (Secs. 3901–3906).*

*Full text: theamericandeal.org/bill-text · This page: theamericandeal.org/government-waste · Contact: contact@theamericandeal.org · Fiscal figures are internal models, not CBO or JCT scores. Drafted by Santonio D. Sanders.*